

proportion of the debts to the salary; how far they detract from the debtor's efficiency as a railway servant; whether the debtor's position is irretrievable; and whether in the circumstances of the case, it is desirable to retain him in the post occupied by him when the matter was brought to notice; or in any post under the Government.

18. Movable, immovable and valuable Property.---(1) (i) Every railway servant shall on his first appointment to the railway service submit a return of his assets and liabilities, in such form as may be prescribed by the Government, giving full particulars regarding—

- (a) the immovable property inherited by him, owned or acquired by him or held by him on lease or mortgage, either in his own name or in the name of any member of his family or in the name of any other person;
- (b) the shares, debentures and cash including bank deposits inherited by him or similarly owned, acquired, or held by him;
- (c) other movable property inherited by him or similarly owned, acquired or held by him ;
- (d) debts and other liabilities incurred by him directly or indirectly.

Note.1 —Sub-rule (1) shall not ordinarily apply to Group 'D' railway servants, but the Government may, in appropriate cases, direct that it shall apply to any of such railway servants or any class of such railway servants.

Note.2--- In every return, the values of items of movable property worth less than Rs. 10,000 may be added and shown as a lump sum. The values of articles of daily use such as clothing, utensils, crockery, books and the like, need not be included in such return.

Note.(3)(1) (i) --- Where a railway servant already belonging to a service or holding a Post is appointed to any other government or Railway service or post, he shall not be required to submit a fresh return under this clause.

(ii) Every railway servant belonging to any service or holding any post included in Group A or Group B shall submit an annual return in such form as may be prescribed by the Government in this regard giving full particulars regarding the immovable property the inherited by him or owned or acquired by him on held by him on lease or mortgage either in his own name or in the name of any member of his family or in the name of any other person.

(2) No railway servant shall, except with the previous knowledge of the Government acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise either in his own name or in the name of any member of his family:

Provided that the previous sanction of the Government shall be obtained by the Railway servant if any such transaction is with a person having official dealings with him.

(3) Where a railway servant enters into a transaction in respect of movable property either in his own name or in the name of a member of his family, he shall,

within one month from the date of such transaction, report the same to the Government, if the value of such property exceeds two months' basic pay of the Railway servant:

Provided that the previous sanction of the Government shall be obtained by the Railway servant if any such transaction is with a person having official dealings with him. **(Authority - Railway Board's letter No.E (D&A) 2011 GS1-3 dated 11.7.2011) acs no.118**

Note.1—Purchase of items of movable property for giving presents at the time of marriage will be regulated by rule 18(3) above like any other transactions in movable property (Railway Board's letter No. E(D&A) 65 GSI-12 dated 23-4-1966.)

Note 2.--- The powers of the Government so far as sub-rule (3) is concerned, may be exercised by—

(i) General Manager and the Chairman, Railway Rates Tribunal, in respect of both gazetted and non-gazetted officers under their respective administrative control; and

(ii) Senior Deputy General Managers on Zonal Railways in respect of gazetted officers below the Senior Administrative Grade and non-gazetted officers subject to the condition that the powers hereby delegated are not further delegated by them to lower authorities so far as cases of gazetted officers are concerned.

(4) The Government or any authority empowered by it in this behalf may, at any time by general or special order, require a railway servant to furnish, within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him or on his behalf or by any member of his family as may be specified in the order. Such statement shall, if so required by the Government or by the authority so empowered, include the details of the means by which, or the source from which, such property was acquired.

(5) The Government may exempt any category of railway servants belonging to Group 'C' or Group 'D' from any of the provisions of this rule except sub-rule (4). No such exemption shall, however, be made without the concurrence of the Railway Board, who will consult the Ministry of Home Affairs (Now Cabinet Secretariat, Department of personnel).

Explanation I. —For the purpose of this rule, the expression 'movable property' includes—

(a) jewellery, insurance policies the annual premium of which exceeds two months' basic pay of the railway servant, shares, securities and debentures;**(Authority - Railway Board's letter No.E (D&A) 2011 GS1-3 dated 11.7.2011) acs no.118**

(b) All loans, whether secured or not, advanced or taken by the Government servant.

(c) motor cars, motor cycles, horses, or any other means of conveyance; and

(d) refrigerators, radios, radiograms and television sets.

Explanation II. —For the purposes of this rule, “lease” means, except where it is obtained from, or granted to, a person having official dealings with the railway servant, a case of immovable property from year to year or for any term exceeding one year or reserving a yearly rent.

Railway Ministry’s decision 1.—It is undesirable for Railway servants to bid at auctions arranged by their own department or under orders of which the auction is conducted and if he does so it would be regarded as indulging in conduct unbecoming of a railway servant under the rules.

(E (D&A) 58 GS-1-6 dt. 15-3-58 & 27-6-66.)

Railway Ministry’s decision 2. —The intention of proviso to sub-rule (2) & (3) regarding bonafide deal is to assure that—

- (i) the transaction proposed to be entered into is for bonafide purposes;
- (ii) the acquisition/sale of property in question is at fair prevailing market prices and does not involve any element of profiteering or speculation;
- (iii) there is no reasonable ground to hold that the transaction in question is the result of the exercise of any undue official influence by the officer e.g. in return of any official favours conferred or likely to be conferred upon the prospective seller/buyer of the property; and

- (iv) there is nothing otherwise objectionable in return to the proposed transaction.

(E (D&A) 60 GS-1-5 dt. 7-6-60.)

Railway Ministry’s decision 3. —The term “Regular and reputed dealer” means a person or firm who deals in a particular item and keeps regular accounts of lists, its transaction and who has regular business premises. A co-operative housing society registered under the Co-operative Society’s Act, 1912 or any corresponding law in force also falls under this definition.

(E (D&A) 60 GS-1-5 dt. 30-1-61.)

Railway Ministry’s decision 4. -- Whenever a Railway servant wishes to build a house, the following procedure should be followed: -

(a) Before starting construction of the house, he should report or seek permission as the case may be and after completion of the house, he should report to the prescribed authority.

(b) The details in proforma prescribed should be furnished wherever it is possible to do so. Wherever it is not possible to furnish the details about purchase of movable property acquired for the construction of the house, the Railway servant concerned should mention the covered area on which the building is proposed to be erected and the estimated cost of the building .

(c) In case where the expenditure to be incurred on repairs or minor construction work in respect of any immovable property belonging to a Railway servant, is estimated to exceed Rs. 1,000/- sanction of the prescribed authority is required.

Railway Ministry’s decision 5. ---The factum of giving or receiving money between father and son can be termed as a transaction of movable property within the meaning of Rule 18 (3).

(E (D&A) 64 GS-1-6 dt. 25-2-65.)

Railway Ministry's decision 6. ---In exercise of the powers conferred by rule 24 read with Rule 2(a) (ii) of these rules, the Railway Board hereby directs as follows:

- (i) Powers exercised by the Railway Board under rule 18(2) of the above rules shall be also exercisable by the General Managers, all Indian Railways, Production Units and the Director General, RDSO in respect of Gazetted officers under their respective administrative control subject to the condition that all cases of such sanction accorded by them shall be reported to the Railway Board, and
- (ii) Powers exercisable by the Railway Board under rule 18(3) of these rules shall be also exercisable by Director General, RDSO in respect of gazetted officers under his administrative control.

(E (D&A) 69 GS-1-11 dt. 14-8-69.)

Railway Ministry's decision 7. —Railway servants should not buy or sell property to or from a firm with whom he has official dealings. In exceptional cases, however, permission may be granted only after careful enquiry into the officer's dealing with the firm and after it is satisfactorily established that he was not conferred and is not likely to confer any official favour upon the party concerned.

(E (D&A) 69 GS-1-3 dt. 9-5-75.)

Railway Ministry's decision 8. —While no permission of the Government is necessary for taking Life insurance Policy or making fixed deposits in Banks under sub-rule (3) above, permission is required to be obtained to join a Chit Fund.

(E (D&A) 69 GS-1-36 dt. 13-12-76.)

Railway Ministry's decision 9. —The provision of Delhi Rent Control Act and similar other provisions in other States, wherever applicable, should be observed by Railway servants while taking rent advance for property held by them.

(E (D&A) 69 GS-1-2 dt. 30-4-76.)

Railway Ministry's decision 10. —It is clarified that transactions entered into by the spouse or any other member of family of a railway servant out of his or her own funds (including stridhan, gifts, inheritance etc.) as distinct from the funds of the railway servant himself in his or her own name and in his or her own right, would not attract the provision of sub-rule (2) and (3) of Rule 18.

Railway Ministry's Decision No.11: Supervisory staff of Group 'C (class-III) on railways working in scales of pay the maximum of which is Rs.900/- and above, should also submit an annual return regarding the immovable property inherited by him, or owned or acquired by him, or held by him on lease or mortgage, either in his own name or in the name of any member of his family or in the name of any other person. The return should be submitted within three months of his first appointment in the grade and thereafter in the month of January every year.

[No.E(D&A) 78 GS1-14 dated 24.10.1980]

Railway Ministry's Decision No.12: The following categories of Commercial Staff in all grades, viz.- Reservation Clerks, Parcel Clerks, Booking Clerks,- TTEs and TCs, should, besides submitting a property return on their initial appointment as required in Rule 18 (1) (i) of the Conduct Rules, should also submit a return of

their property at the time of every promotion, as also at the time of submitting documents for pension (approximately two years prior to superannuation).

[No.E(D&A) 85 GS1-13 dated 10.2.1986]

Railway Ministry's Decision No. 13: Sale and purchase of shares, securities, debentures, etc. are to be treated as transactions in movable property. An intimation is to be given under Rule 18(4) to the prescribed authority in the proforma laid down in the following cases:

- (i) Group 'A' and 'B' Officers - If the cumulative transactions i.e., sale, purchase or both in shares, securities, debentures or mutual funds scheme etc. exceeds Rs.50,000/- during the calendar year.
- (ii) Group 'C' and 'D' Officers - If the cumulative transactions i.e., sale, purchase or both in shares, securities, debentures or mutual funds scheme etc., exceeds Rs.25,000/- during the calendar year.

The above intimation will be in addition to the intimation(s) required to be given under Rule 18(3) in respect of individual transactions in shares, securities, debentures, etc. which exceeds the amounts prescribed therefor.

[E(D&A)92 GS1-2 dated 17/21.05.1992]

(Authority: Railway Board's letter No.E(D&A) 2007/GS 1-1 dated 26/10/2007]

-ACS No.104)

18-A. Restrictions in relation to acquisition and disposal of immovable property out side India and transaction with foreigners, etc.—Notwithstanding anything contained in sub-rule (2) of rule 18. No railway servant shall except with the previous sanction of the Government –

- (a) Acquire, by purchase, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family, any immovable property situated outside India.
- (b) dispose of, by sale, mortgage, gift or otherwise, or grant any lease in respect of any immovable property situated outside India which was acquired or is held by him either in his own name or in the name of any member of his family;
- (c) enter into any transaction with any foreigner, foreign Government, foreign organization or concern—
 - (i) for the acquisition, by purchase, mortgage, lease, gift or otherwise, either in his own name or in the name of any member of his family, or any immovable property.
 - (ii) for the disposal of, by sale, mortgage, gift or otherwise , or the grant of any lease in respect of, any immovable property which was acquired or is held by him either in

his own name or in the name of any member of his family.

19. Vindication of Acts and Character of Railway servants.—(1) No railway servant shall, except with the previous sanction of the Government, have recourse to any Court or to the Press for the vindication of any official act which has been subject matter of adverse criticism or an attack of a defamatory character.

Provided that if no such sanction is received by the railway servant within a period of three months from the date of receipt of his request by the Government, he shall be free to assume that the permission as sought for has been granted to him.

(Authority: Railway Board's letter No., E(D&A) 96 GS1-5 dated 24-12-96)

(2) Nothing in this rule shall be deemed to prohibit a railway servant from vindicating his private character and or any act done by him in his private capacity and where any action for vindicating his private character or any act done by him in his private capacity is taken, the railway servant shall submit a report to the Government regarding such action.

Railway Ministry's decision 1.—Railway servants seeking redress of their grievances arising out of their employment of conditions of service should in their own interest and also consistently with official propriety and discipline first exhaust the normal official channels of redress before they take the issue to a court of law. Any attempt by Railway servants to seek redress from the court of law or such matters (even in cases where such a remedy is legally admissible) without first exhausting the normal official channels of redress can only be regarded as contrary to official propriety and subversive of good discipline and may well justify the initiation of disciplinary action against them.

(E (D&) 62 RG6-21 dt.5-2-64 & E (D&A) 69 RG 6-37 dt. 14-2-67.)

20. Canvassing of Non-official or other Influence. —No railway servant shall bring or attempt to bring any political or other influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Government.

Railway Ministry's decision.—Railway servants are advised to strictly refrain from bringing pressure from the M.Ps and other influential outsiders to secure benefits out of turn or regarding any matter arising out of their service. If such occasions arise, the name of the officer or the member of the staff concerned will be brought to the notice of the Head of the Department for such disciplinary action as may be considered necessary.